LOADOUT MARKETPLACE, INC.

TERMS OF SERVICE

Effective Date: May 17, 2026

Governing Law: State of Tennessee

PLEASE READ THESE TERMS OF SERVICE CAREFULLY. BY ACCESSING OR USING THE LOADOUT MARKETPLACE PLATFORM, YOU AGREE TO BE LEGALLY BOUND BY THESE TERMS. IF YOU DO NOT AGREE, DO NOT ACCESS OR USE THE SERVICES.

These Terms of Service ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and Loadout Marketplace, Inc. ("Loadout," "we," "us," or "our"), governing your access to and use of the website located at loadout-marketplace.com, all related mobile applications, and all services, features, and content offered therein (collectively, the "Services").

1. Eligibility

1.1 Age Requirement. You must be at least 18 years of age to use the Services. By using the Services, you represent and warrant that you are 18 years of age or older. If you are under 18, you are not permitted to use the Services under any circumstances.

1.2 Legal Capacity. You must have the legal capacity to enter into binding contracts under applicable law. If you are using the Services on behalf of a business, organization, or other legal entity, you represent that you have full authority to bind that entity to these Terms.

1.3 Compliance. You may use the Services only in full compliance with these Terms, all applicable federal, state, and local laws, regulations, and ordinances, including but not limited to laws governing the sale of goods, consumer protection, and anti-fraud statutes.

2. Account Registration and Security

2.1 Account Creation. To access certain features of the Services, including listing or purchasing materials, you must create an account. You agree to provide accurate, current, and complete information during registration and to update such information as necessary to keep it accurate, current, and complete.

2.2 Account Security. You are solely responsible for maintaining the confidentiality of your account credentials, including your password. You are responsible for all activity that occurs under your account, whether or not authorized by you. You agree to notify us immediately at support@loadout-marketplace.com if you suspect any unauthorized access to or use of your account.

2.3 One Account Per Person. You may not create more than one account per individual or business entity. We reserve the right to merge, suspend, or terminate duplicate accounts.

2.4 Account Suspension and Termination. We reserve the right to suspend, restrict, or terminate your account and access to the Services at any time, with or without notice, for any reason, including but not limited to violation of these Terms, suspected fraud, illegal activity, or conduct harmful to other users or to Loadout. We are not liable for any loss or damage arising from such suspension or termination.

3. The Loadout Marketplace Platform

3.1 Platform Role. Loadout Marketplace operates an online marketplace platform that enables registered users to list, discover, and transact surplus and leftover construction and building materials. Loadout is not a party to any transaction between buyers and sellers. All transactions are directly between the buyer and the seller.

3.2 No Ownership or Possession. Loadout does not own, possess, inspect, handle, store, or ship any materials listed on the platform. We make no representations or warranties regarding the quality, safety, legality, condition, fitness for purpose, or accuracy of any listing.

3.3 No Guarantee of Transactions. Loadout does not guarantee that any listing will result in a completed transaction, that any buyer will complete a purchase, that any seller will fulfill their obligations, or that materials will be available at the time of purchase.

3.4 Escrow Payment Model. When a buyer completes a purchase, payment is collected by Loadout through Stripe, Inc. and held in escrow. Funds are not released to the seller until the buyer confirms pickup of the materials. If a buyer fails to confirm pickup within a reasonable timeframe, contact us at support@loadout-marketplace.com and we will review the situation at our sole discretion. Loadout reserves the right to modify the escrow and release process at any time.

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4. Listings and Seller Obligations

4.1 Listing Accuracy. Sellers are solely and exclusively responsible for the accuracy, completeness, and truthfulness of all listing content, including but not limited to material descriptions, quantities, dimensions, condition, pricing, photos, and pickup location. Sellers warrant that all listing information is truthful and not misleading.

4.2 Condition Disclosure. Surplus and salvaged materials may be new, used, partially used, or damaged. Sellers must clearly and accurately describe the condition of materials and disclose all known defects, damage, hazards, or limitations to the best of their knowledge. Failure to disclose known defects may expose the seller to liability independent of these Terms.

4.3 Ownership and Right to Sell. By listing any materials, sellers represent and warrant that: (a) they are the lawful owner of the materials or are otherwise authorized to sell them; (b) the sale does not violate any contract, lien, encumbrance, or third-party right; and (c) the materials are not stolen, counterfeit, hazardous, or otherwise illegal to sell.

4.4 Legal Compliance. Sellers are solely responsible for ensuring that their listings and sales comply with all applicable federal, state, and local laws, including zoning ordinances, building codes, occupational safety regulations, and environmental regulations. Loadout assumes no responsibility for a seller's compliance or non-compliance with applicable law.

4.5 Prohibited Listings. You may not list or sell:

- Stolen, counterfeit, or fraudulently obtained materials
- Hazardous materials, asbestos-containing materials, lead-based paint products, or materials containing known toxic substances
- Materials subject to active liens, encumbrances, legal disputes, or court orders
- Items whose sale is restricted, regulated, or prohibited under applicable law
- Any item that Loadout, in its sole discretion, deems inappropriate for the platform

Loadout reserves the right to remove any listing at any time without notice or liability.

4.6 Pickup and Coordination. Sellers are responsible for making listed materials available for pickup in accordance with the terms stated in their listing and for communicating with buyers in good faith to arrange pickup within a reasonable timeframe following a completed purchase.

5. Buyer Obligations and Responsibilities

5.1 Buyer Due Diligence. Buyers are solely responsible for reviewing listings carefully and making informed purchasing decisions. Loadout does not inspect, certify, test, or verify any materials listed on the platform. ALL MATERIALS ARE PURCHASED "AS IS" AND "WHERE IS" UNLESS EXPLICITLY STATED OTHERWISE BY THE SELLER.

5.2 Pre-Purchase Inspection. Buyers are strongly encouraged to inspect materials in person at or before pickup to confirm that materials match the listing description. The buyer's confirmation of pickup constitutes the buyer's acceptance of the materials in their received condition and triggers the release of payment to the seller. Once pickup is confirmed, all sales are final.

5.3 No Warranty of Fitness. Loadout makes no representation or warranty that any materials are fit for any particular purpose, comply with any building code, safety standard, or professional specification, or are suitable for any intended use. Buyers are solely responsible for determining the suitability, safety, and code compliance of any materials they purchase.

5.4 Final Sale. All sales are final once the buyer confirms pickup. Loadout does not offer refunds, returns, or exchanges on behalf of sellers. Any post-sale disputes are exclusively between the buyer and seller.

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6. Fees, Payments, and Payouts

6.1 Platform Fee. Loadout charges sellers a platform fee of 9.9% of the final gross sale price on each completed transaction. This fee is automatically deducted from the transaction at the time of payout. There are no listing fees. Buyers are not charged any platform fee.

6.2 Payment Processing. All payments are processed by Stripe, Inc. By using the Services, you agree to Stripe's Terms of Service and Privacy Policy, available at stripe.com. Loadout is not responsible for errors, delays, failures, or unauthorized transactions arising from Stripe's systems.

6.3 Seller Payouts. Following the buyer's confirmation of pickup, Loadout will initiate a transfer of the sale proceeds, less the 9.9% platform fee and any applicable Stripe processing fees, to the seller's connected Stripe account. Transfers are subject to Stripe's standard payout timelines, typically 2 business days, but may be delayed due to bank processing, verification requirements, or other factors outside Loadout's control.

6.4 Stripe Connect Requirement. Sellers must connect a valid U.S. bank account through Stripe Connect before their listing can be published. Loadout does not store bank account credentials. All banking information is managed exclusively by Stripe.

6.5 Stripe Climate. A portion of each transaction processed through Loadout is contributed to carbon removal initiatives through Stripe Climate. This contribution is made by Loadout and does not increase the fees charged to buyers or sellers.

6.6 Taxes. Each user is solely responsible for determining and paying any applicable federal, state, or local taxes, including sales tax, income tax, or self-employment tax, arising from their use of the Services or transactions completed through the platform. Loadout does not collect, withhold, or remit taxes on behalf of any user. Nothing in these Terms constitutes tax advice.

6.7 Disputed Payments and Chargebacks. In the event of a chargeback or payment dispute initiated by a buyer through their payment provider, Loadout reserves the right to investigate and, where appropriate, deduct the disputed amount, along with any associated chargeback fees, from the seller's pending or future payouts. Sellers agree to cooperate with Loadout in responding to any chargeback or payment dispute.

7. Cancellations, Disputes, and Refunds

7.1 Between Users. Because Loadout is not a party to transactions between buyers and sellers, any disputes, cancellations, or requests for refunds arising from a transaction are primarily between the buyer and the seller. Loadout is not obligated to mediate, arbitrate, or resolve any such disputes.

7.2 Our Involvement. Loadout may, in its sole and absolute discretion, attempt to assist in facilitating resolution of a dispute between users. Any such assistance is voluntary and does not create any obligation, liability, or precedent. Our decisions in connection with any such assistance are final.

7.3 No Guaranteed Refunds. Loadout does not guarantee refunds, returns, or reimbursements to any user under any circumstances, except as may be expressly required by applicable law. All sales are final once pickup is confirmed.

7.4 Pre-Pickup Cancellation. If a transaction has been paid but pickup has not yet been confirmed, users may contact Loadout at support@loadout-marketplace.com to request a cancellation. Loadout will review cancellation requests at its sole discretion and is not obligated to approve any cancellation request. Processing of any refund in connection with a cancellation is subject to Stripe's refund processing timelines and policies.

8. Prohibited Conduct

You agree that you will not, under any circumstances:

- Use the Services for any unlawful, fraudulent, deceptive, or abusive purpose
- Post false, misleading, inaccurate, or deceptive content in any listing or communication
- Circumvent, bypass, or manipulate any fee, payment process, or escrow mechanism
- Contact users outside the platform to avoid platform fees or circumvent these Terms
- Harass, threaten, intimidate, defame, or abuse any other user
- Use the platform to facilitate transactions in prohibited items as described in Section 4.5
- Scrape, harvest, or collect data from the platform using automated means without our express written permission
- Reverse engineer, decompile, disassemble, or attempt to derive the source code of the Services
- Impersonate any person, entity, or business, or misrepresent your affiliation with any person or entity
- Introduce viruses, malware, ransomware, spyware, or any other malicious or harmful code into the platform
- Interfere with or disrupt the integrity, security, availability, or performance of the Services or any servers or networks connected to the Services
- Create multiple accounts for abusive, fraudulent, or deceptive purposes

Violation of this section may result in immediate account termination, removal of listings, forfeiture of pending payouts, and referral to appropriate law enforcement authorities.

9. User Content and License

9.1 Definition. "User Content" means all information, text, photographs, images, videos, reviews, ratings, messages, and other materials that you submit, post, upload, or transmit through the Services.

9.2 Your Ownership. You retain ownership of your User Content, subject to the license granted below.

9.3 License to Loadout. By submitting User Content, you grant Loadout a worldwide, non-exclusive, royalty-free, sublicensable, and transferable license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, publicly perform, and publicly display such User Content for the purposes of operating, promoting, improving, and marketing the Services. This license survives termination of your account with respect to User Content that has been shared with others or incorporated into our systems.

9.4 Representations and Warranties. You represent and warrant that: (a) you own or have all necessary rights and licenses to submit your User Content; (b) your User Content does not infringe, misappropriate, or violate any third party's intellectual property rights, privacy rights, publicity rights, or any other rights; (c) your User Content does not contain any false, defamatory, harassing, obscene, or otherwise unlawful material; and (d) all photographs and descriptions in your listings accurately reflect the actual materials being sold.

9.5 Content Removal. Loadout reserves the right, but has no obligation, to review, monitor, edit, remove, or disable access to any User Content at any time, for any reason, in its sole discretion, without notice or liability to you.

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10. Intellectual Property

10.1 Loadout IP. All content, software, code, design elements, text, graphics, logos, trademarks, service marks, trade names, and other materials comprising the Services (excluding User Content) are owned by or licensed to Loadout Marketplace, Inc. and are protected by applicable intellectual property laws, including U.S. and international copyright, trademark, and trade secret laws.

10.2 Limited License to Users. Subject to your compliance with these Terms, Loadout grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Services solely for your personal or internal business purposes, in accordance with these Terms.

10.3 Restrictions. You may not copy, reproduce, distribute, modify, create derivative works of, publicly display, publicly perform, republish, download, store, transmit, or exploit any portion of the Services, except as expressly permitted by these Terms or with our prior written consent.

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11. Messaging and Communications

11.1 Platform Messaging. Loadout provides a secure messaging system to facilitate communications between buyers and sellers. All communications through this system are subject to these Terms. Loadout may monitor, review, and retain messages for safety, fraud prevention, legal compliance, and platform integrity purposes.

11.2 Auto-Generated Messages. Upon completion of a purchase, Loadout automatically initiates a message thread between the buyer and seller to facilitate pickup coordination. By using the Services, you consent to receipt of such automated messages.

11.3 Communication Standards. All communications through the platform must be professional, respectful, and directly related to the facilitation of transactions. Harassment, threats, spam, or any other prohibited conduct in communications may result in immediate account termination.

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12. Reviews and Ratings

12.1 Honest Reviews. Following a completed transaction, buyers and sellers may be invited to leave reviews and ratings about each other. All reviews must be honest, accurate, and based on actual experience with the transaction.

12.2 Prohibited Review Content. You may not submit reviews that are false, defamatory, harassing, retaliatory, or in exchange for any form of compensation. Loadout reserves the right to remove any review that violates these standards.

12.3 No Removal of Legitimate Reviews. Loadout will not remove legitimate, honest reviews at the request of the reviewed party simply because the review is negative. Sellers and buyers are subject to the honest feedback of their counterparties.

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13. Third-Party Services

The Services integrate with and rely on certain third-party services, including Stripe, Inc. (payment processing), Supabase (database and authentication infrastructure), and Vercel (hosting). Your use of the Services is subject to the applicable terms and policies of these third-party providers. Loadout is not responsible for the acts, omissions, errors, or failures of any third-party service provider. Links to third-party websites or services within the platform are provided for convenience only and do not constitute our endorsement of any third party.

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14. Disclaimer of Warranties

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT ANY WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY. LOADOUT EXPRESSLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING, COURSE OF PERFORMANCE, OR USAGE OF TRADE.

WITHOUT LIMITING THE FOREGOING, LOADOUT DOES NOT WARRANT THAT: (A) THE SERVICES WILL MEET YOUR REQUIREMENTS OR EXPECTATIONS; (B) THE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE; (C) ANY DEFECTS IN THE SERVICES WILL BE CORRECTED; (D) THE SERVICES OR ANY SERVER MAKING THEM AVAILABLE ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS; OR (E) THE QUALITY, SAFETY, LEGALITY, CONDITION, OR SUITABILITY OF ANY MATERIALS LISTED OR PURCHASED THROUGH THE SERVICES MEETS ANY PARTICULAR STANDARD.

SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF CERTAIN WARRANTIES, SO SOME OF THE ABOVE EXCLUSIONS MAY NOT APPLY TO YOU.

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15. Limitation of Liability

15.1 Exclusion of Consequential Damages. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, LOADOUT AND ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AFFILIATES, SUCCESSORS, AND ASSIGNS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, COST OF SUBSTITUTE SERVICES, OR ANY OTHER INTANGIBLE LOSSES, ARISING OUT OF OR RELATED TO YOUR USE OF OR INABILITY TO USE THE SERVICES,

REGARDLESS OF THE LEGAL THEORY ASSERTED AND EVEN IF LOADOUT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

15.2 Cap on Liability. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, LOADOUT'S TOTAL CUMULATIVE LIABILITY TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATED TO THE SERVICES OR THESE TERMS, REGARDLESS OF THE FORM OF ACTION, SHALL NOT EXCEED THE GREATER OF: (A) ONE HUNDRED U.S. DOLLARS ($100.00); OR (B) THE TOTAL AMOUNT OF PLATFORM FEES PAID BY YOU TO LOADOUT IN THE SIX (6) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

15.3 Essential Basis. YOU ACKNOWLEDGE THAT THE LIMITATIONS OF LIABILITY IN THIS SECTION REFLECT A REASONABLE AND FAIR ALLOCATION OF RISK AND ARE AN ESSENTIAL BASIS OF THE BARGAIN BETWEEN YOU AND LOADOUT. THESE LIMITATIONS WILL APPLY NOTWITHSTANDING ANY FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED REMEDY.

15.4 Disputes Between Users. Loadout is not liable for any disputes, claims, losses, injuries, or damages of any kind arising out of or related to the conduct of any user of the platform. All disputes between buyers and sellers are strictly between those parties.

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16. Indemnification

You agree to defend, indemnify, and hold harmless Loadout Marketplace, Inc. and its officers, directors, employees, agents, successors, assigns, and affiliates (collectively, the "Loadout Parties") from and against any and all claims, actions, proceedings, demands, liabilities, damages, losses, judgments, settlements, costs, and expenses (including reasonable attorneys' fees and court costs) arising out of or related to:

- Your access to or use of the Services
- Your breach of these Terms or any representation or warranty made by you herein
- Your violation of any applicable law, regulation, or third-party right, including intellectual property rights and privacy rights
- Your User Content, including any claim that your User Content infringes the rights of any third party
- Any transaction or dispute between you and another user of the platform
- Any claim by a third party arising from materials you listed or sold through the platform, including claims related to product liability, misrepresentation, or failure to disclose defects

Loadout reserves the right to assume exclusive control of the defense of any matter subject to indemnification by you, at your expense. You agree to cooperate fully with Loadout in asserting any available defenses.

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17. Termination

17.1 Termination by You. You may terminate your account at any time by contacting us at support@loadout-marketplace.com. Termination does not entitle you to any refund of fees paid or forgiveness of any amounts owed.

17.2 Termination by Loadout. Loadout may suspend or terminate your access to the Services, in whole or in part, at any time, with or without notice, for any reason, including but not limited to: (a) violation of these Terms; (b) fraudulent, deceptive, or illegal activity; (c) conduct harmful to other users, third parties, or Loadout; (d) extended inactivity; or (e) at our discretion for any business reason.

17.3 Effect of Termination. Upon termination: (a) your right to access and use the Services immediately ceases; (b) any pending listings will be removed; (c) any funds held in escrow will be handled at Loadout's discretion in accordance with the circumstances of termination; and (d) provisions of these Terms that by their nature should survive termination will survive, including but not limited to Sections 8, 9, 10, 14, 15, 16, 18, and 19.

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18. Governing Law and Dispute Resolution

18.1 Governing Law. These Terms and any dispute arising out of or related to these Terms or the Services shall be governed by and construed in accordance with the laws of the State of Tennessee, without regard to its conflict of law principles.

18.2 Informal Resolution. Before initiating any formal legal proceeding against Loadout, you agree to first contact us at support@loadout-marketplace.com and attempt to resolve the dispute informally. If we are unable to resolve the dispute within thirty (30) days of your initial notice, either party may proceed with formal dispute resolution.

18.3 Binding Arbitration. Except for claims that qualify for small claims court, any dispute, claim, or controversy arising out of or relating to these Terms, your use of the Services, or any transaction facilitated through the Services shall be resolved by binding individual arbitration administered by a nationally recognized arbitration provider in accordance with its rules. The arbitration shall be conducted in Nashville, Tennessee, or, at your election, via telephone or video conference. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

18.4 Class Action Waiver. TO THE FULLEST EXTENT PERMITTED BY LAW, YOU AND LOADOUT AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, REPRESENTATIVE, OR MULTI-PARTY ACTION OR PROCEEDING. THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS AND MAY NOT PRESIDE OVER ANY FORM OF REPRESENTATIVE OR CLASS PROCEEDING.

18.5 Exception for Injunctive Relief. Notwithstanding the foregoing, either party may seek emergency injunctive or other equitable relief from a court of competent jurisdiction to prevent actual or threatened infringement, misappropriation, or violation of that party's intellectual property rights or confidential information.

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19. Changes to Terms and Services

19.1 Changes to Terms. Loadout reserves the right to modify these Terms at any time. If we make material changes, we will notify you by updating the Effective Date at the top of this document and, where appropriate, by posting notice on the Services or sending an email to the address associated with your account. Your continued use of the Services after the effective date of any modification constitutes your acceptance of the revised Terms. If you do not agree to the revised Terms, you must stop using the Services.

19.2 Changes to Services. Loadout reserves the right to modify, suspend, or discontinue the Services, in whole or in part, at any time, with or without notice. Loadout shall not be liable to you or any third party for any modification, suspension, or discontinuation of the Services.

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20. Miscellaneous

20.1 Entire Agreement. These Terms, together with the Privacy Policy and any other policies or agreements incorporated herein by reference, constitute the entire agreement between you and Loadout regarding the Services and supersede all prior or contemporaneous agreements, representations, warranties, and understandings.

20.2 Severability. If any provision of these Terms is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force and effect.

20.3 No Waiver. Our failure to enforce any right or provision of these Terms shall not constitute a waiver of that right or provision unless acknowledged and agreed to by Loadout in writing.

20.4 Assignment. You may not assign, transfer, or delegate any of your rights or obligations under these Terms without Loadout's prior written consent. Any purported assignment without such consent is void. Loadout may freely assign its rights and obligations under these Terms without restriction.

20.5 Force Majeure. Loadout shall not be liable for any delay or failure in performance resulting from causes beyond our reasonable control, including but not limited to acts of God, natural disasters, pandemic, war, terrorism, civil unrest, government action, internet or telecommunications failures, or power outages.

20.6 No Third-Party Beneficiaries. These Terms are for the sole benefit of you and Loadout and do not create any third-party beneficiary rights.

20.7 Headings. Section headings in these Terms are for convenience only and have no legal or contractual effect.

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21. Contact Information

If you have any questions, concerns, or complaints regarding these Terms, please contact us at:

Loadout Marketplace, Inc.

Email: support@loadout-marketplace.com

Website: https://www.loadout-marketplace.com

Nashville, Tennessee

We will make reasonable efforts to respond to all inquiries within 5 business days.

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